

25CMCV02029 25CMCV02029

County: los-angeles

Division: Civil Law and Motion

Department: A

Hearing date: 2026-08-31

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Case Number: 25CMCV02029 Hearing Date: August 31, 2026 Dept: A

Plaintiff's motion to compel further responses to requests for admissions and an award of monetary sanctions against defaulted defendant Valerie Trading, Inc. is denied.

As to Valerie Trading, Inc., not only did plaintiff not object to the court striking its answer on July 15, 2026, plaintiff requested and obtained entry of default against it July 31, 2026. As of July 15, 2026, and in any event no later than upon entry of default, defendant lacked standing to participate in the litigation, including with respect to discovery. In addition to plaintiff's unfounded request for discovery responses and monetary sanctions against defendant, plaintiff requests monetary sanctions of \$31,025 against Lisa D. Simantob, defendant's former counsel. Attorney Simantob was relieved as counsel for Valerie Trading, Inc. by the court on April 7, 2026. That order became effective April 10, 2026 upon filing proof of service of the court's order on defendant.

Contrary to plaintiff's contention, plaintiff was required to specifically identify attorney Simantob in the notice of motion as an individual against whom monetary sanctions were sought. (Code of Civ. Proc. section 2023.040.) It failed to do so, and its subsequent notice of errata did not cure this defect. Moreover, plaintiff does not establish that counsel adequately meet and conferred before bringing this motion against attorney Simantob, or that attorney Simantob engaged in discovery abuse prior to being relieved as counsel.

The court concludes the motion constitutes a misuse of the discovery process, and awards monetary sanctions in the amount of \$1,800 jointly and severally against plaintiff MW Fingerhut, LLC and its counsel of record, Allen Matkins Leck Gamble Mallory & Natsis LLP, Jordan R. Victor and Andrew A. Wood and in favor of attorney Lisa D. Simantob, pursuant to Code of Civ. Procedure sections 2023.020, 2023.030 and 2033.290(d) payable within thirty days of entry of this order.

Plaintiff is ordered to give notice.

[Note the court has posted tentative rulings for the discovery motions set to be heard on September 1, 2026 and September 2, 2026. The court is agreeable to hearing all motions on August 31, 2026 should all parties to the motion stipulate.]